

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 3695

By: Gise

COMMITTEE SUBSTITUTE

An Act relating to motor vehicles; amending 47 O.S. 2021, Section 11-904, as amended by Section 65, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-904), which relates to personal injury accidents; modifying scope of certain defined term; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 11-904, as amended by Section 65, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-904), is amended to read as follows:

Section 11-904. A. Any person who is involved in a personal injury accident while driving or operating a motor vehicle within this state and who is in violation of the provisions of subsection A of Section 11-902 of this title may be charged with a violation of the provisions of this subsection as follows:

1. Any person who is convicted of a violation of the provisions of this subsection shall be deemed guilty of a misdemeanor for the

1 first offense and shall be punished by imprisonment in the county
2 jail for not less than ninety (90) days nor more than one (1) year,
3 and a fine of not more than Two Thousand Five Hundred Dollars
4 (\$2,500.00); and

5 2. Any person who is convicted of a violation of the provisions
6 of this subsection after having been previously convicted of a
7 violation of this subsection or of Section 11-902 of this title
8 shall be deemed guilty of a Class B5 felony offense and shall be
9 punished by imprisonment in the custody of the Department of
10 Corrections for not less than one (1) year and not more than five
11 (5) years, and a fine of not more than Five Thousand Dollars
12 (\$5,000.00).

13 B. ~~1.~~ Any person who causes an accident resulting in great
14 bodily injury to any person other than himself or herself while
15 driving or operating a motor vehicle within this state and who is in
16 violation of the provisions of subsection A of Section 11-902 of
17 this title may be charged with a violation of the provisions of this
18 subsection. Any person who is convicted of a violation of the
19 provisions of this subsection shall be deemed guilty of a Class B1
20 felony offense punishable by imprisonment in the custody of the
21 Department of Corrections for not less than four (4) years and not
22 more than twenty (20) years, and a fine of not more than Five
23 Thousand Dollars (\$5,000.00).

1 2. C. As used in this ~~subsection~~ section, "great bodily injury"
2 means bodily injury which creates a bone fracture, protracted and
3 obvious disfigurement, protracted loss or impairment of the function
4 of a body part, organ or mental faculty, or substantial risk of
5 death ~~or which causes serious, permanent disfigurement or protracted~~
6 ~~loss or impairment of the function of any bodily member or organ.~~

7 SECTION 2. This act shall become effective November 1, 2026.

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9 60-2-16923 GRS 03/03/26